Denver District Court
1437 Bannock St., Denver, CO 80202

District Court, City and County of Denver, Colorado
Domestic Relations Division | Room 256

In re the Matter of:
Petitioner: **Melissa M. Opsahl**
Respondent: **Tyler M. Opsahl**
Case No.: **2020 DR2504**

EMERGENCY MOTION FOR INJUNCTIVE RELIEF
UNDER C.R.S. §14-10-129(4) AND C.R.M. 7

(To Stay Passport Issuance, Stay Unsafe Relocation Orders,
Restore Local Reunification Therapy, and Compel Evidence Production)

DIRECTED TO PRESIDING DISTRICT COURT JUDGE FOR REVIEW OF MAGISTRATE INACTION

***** PASSPORT EMERGENCY — IMMEDIATE ACTION REQUIRED *****
Minor children's passports may be issued within 24-48 hours.
Petitioner is enrolled in the U.S. State Department Children's Passport Issuance Alert Program (CPIAP).
Immediate stay is required to prevent irreversible harm and international relocation.

I. INTRODUCTION

This is an emergency. Petitioner, Melissa M. Opsahl, respectfully moves this Court — and specifically requests review by a District Court Judge pursuant to C.R.M. 7 — because the current Magistrate orders and the Magistrates' complete failure to act on two previously filed emergency motions place the children at imminent risk of being permanently removed to Belgium, severing their relationship with their mother.

Petitioner filed an Emergency Motion for Stay of Relocation on April 10, 2026, and an Emergency Motion for Abduction Prevention Measures on April 18, 2026. Both were returned with NO ACTION TAKEN. Petitioner appeared before Magistrate Karen Hubler, who refused to hear the evidence, raised disproven allegations, and parroted prior Magistrate rulings. The children's passports may now be issued at any moment.

The current orders — including the Magistrate's February 2026 decision to restart the six-month supervised call clock without any new evidence of danger, ignore nearly two years of clean drug screens including a hair follicle test, rely on suppressed and disproven evidence,

and enforce an impossible and unsafe Belgium reunification plan — place the children at imminent risk of emotional endangerment, violate Colorado statutory requirements, and were issued through procedurally defective and biased proceedings.

Petitioner seeks immediate injunctive relief to:

1. Stay the Belgium reunification and relocation order immediately
2. Restrict issuance of minor children's passports pending further hearing
3. Restore local reunification therapy (Relate Family Therapy)
4. Restore normal or minimally supervised in-person parenting time
5. Compel production of all withheld supervisor records, transcripts, and recordings
6. Assign this matter to a District Court Judge for immediate review under C.R.M. 7

II. JURISDICTION AND REQUEST FOR DISTRICT COURT REVIEW

Pursuant to C.R.M. 7, Petitioner respectfully requests that a District Court Judge review the actions and inaction of Magistrate Michelle Crozier-Haynes and Magistrate Karen Hubler, including their failure to rule on emergency motions filed April 10, 2026 and April 18, 2026, and the February 2026 orders restarting the supervised call clock without evidentiary basis.

This Court has additional jurisdiction under:

- C.R.S. §14-10-129(4): Emergency restriction and modification of parenting time
- C.R.S. §14-10-124(1.5): Best-interest findings required
- C.R.S. §13-25-127: Right to present evidence
- C.R.C.P. 65: Injunctive relief
- C.R.M. 7: Review of Magistrate orders by District Court Judge

III. FACTUAL BACKGROUND

A. Passport Emergency

Respondent Tyler Opsahl filed for expedited passports for the minor children on or about April 25, 2026. Expedited processing takes approximately five days. Petitioner is enrolled in the U.S. Department of State Children's Passport Issuance Alert Program (CPIAP) and has been in active communication with that office. Passports have not yet been issued as of the filing of this motion, but issuance is imminent. Once the children leave the United States, enforcement of any Colorado parenting order becomes practically impossible.

B. Magistrate's February 2026 Orders — Legally Defective

In February 2026, the Magistrate:

- Restarted the six-month supervised call clock without any new evidence of danger

- Ignored nearly two years of clean random drug screens, including a clean hair follicle test

- Relied on allegations scientifically disproven by said drug screens

- Accepted the false reports of Visitation Supervisor Hendrix, who lied to the court on two documented occasions

- Refused to hear Petitioner's objections

This violates C.R.S. §14-10-129(4), which requires credible evidence of imminent danger before restricting parenting time, and C.R.S. §14-10-124(1.5)(a)(III).

C. The Visitation Supervisor Conflict of Interest

Respondent Tyler Opsahl was the sole party permitted to select the visitation supervisor. Supervisor Phillip Hendrix made false reports to the court regarding drug use concerns on two documented occasions. Despite Petitioner's objections and the scientific disproof of these allegations, the court treated Hendrix's reports as fact. Allowing the opposing party to unilaterally select the supervision monitor with no independent oversight is a fundamental due process violation.

D. Evidence Suppression

For months, the supervisor and Respondent have withheld transcripts, recordings, and notes from supervised calls, and have refused to produce documentation of children's concerns. The Magistrate refused to compel production. This violates C.R.S. §14-10-123.8(2)(a), C.R.S. §13-25-127, C.R.S. §18-8-610 (evidence tampering), and C.R.S. §18-8-111 (false reporting).

E. Abuse Reports Ignored — Children at Risk

The children's former therapist reported physical and sexual abuse of the youngest child (then age 5) to Arapahoe County CPS. No action was taken. The current therapeutic provider at Relate Family Therapy has expressed documented concern over 16-year-old Gideon's excessive illicit psychedelic drug use. This was reported to Arapahoe County CPS. No action was taken. Meanwhile, family members have reported to Petitioner that Respondent has been drinking heavily and failing to feed the children on multiple occasions, consistent with statements made by the children on recorded supervised calls.

F. April 2026 Emergency Motions — Ignored

Petitioner filed:

- 04/10/2026: Emergency Motion for Sanctions and Abduction Prevention — NO ACTION TAKEN

- 04/18/2026: Emergency Motion for Abduction Prevention Measures — NO ACTION TAKEN

Petitioner appeared before Magistrate Karen Hubler, who refused to hear argument, raised disproven allegations, and took no action. This violates C.R.S. §14-10-129(4) (prompt review required), C.R.S. §14-13-204 (abduction prevention review required), and Due Process under the 14th Amendment.

G. The Belgium Relocation Order Is Impossible, Unsafe, and Endangering

The current relocation order:

- Was granted in October 2025 based on an unverified, open-ended 'job offer' pending since August 2025
- Requires Petitioner to fly to Belgium to participate in reunification therapy, despite Respondent's documented history of domestic violence and noncompliance
- Removes children from their established therapeutic providers in Colorado
- Is impossible to enforce once the children leave U.S. jurisdiction
- Risks permanent severance of the parent-child relationship

This violates C.R.S. §14-10-124(1.5)(a), C.R.S. §14-10-129(4), and C.R.S. §14-10-123.8.

IV. LEGAL STANDARD

Under C.R.S. §14-10-129(4), emergency relief is required when: (1) a child is in imminent physical or emotional danger; (2) a parenting order is based on incorrect or incomplete evidence; (3) a court has failed to consider required evidence; or (4) a parent has interfered with the parent-child relationship. All four conditions are present here.

V. REQUESTED RELIEF

Petitioner respectfully requests that the Court:

1. Assign this matter immediately to a District Court Judge under C.R.M. 7
2. Issue an emergency order restricting passport issuance for the minor children pending hearing
3. Stay the Belgium reunification and relocation order immediately
4. Restore local reunification therapy at Relate Family Therapy
5. Restore normal or minimally supervised in-person parenting time
6. Compel production of all supervisor records, transcripts, and recordings within 72 hours
7. Vacate or modify the February 2026 and March 2026 Magistrate orders

8. Order a new hearing before a District Court Judge

9. Grant any further relief necessary to protect the children and the parent-child relationship

---

VI. AFFIDAVIT OF MELISSA M. OPSAHL

I, Melissa M. Opsahl, declare under penalty of perjury under the laws of the State of Colorado that:

- The facts stated in this Motion are true to the best of my knowledge.
- I have provided clean random drug screens for nearly two years, including a clean hair follicle test. All have been ignored.
- The Magistrate restarted the supervised call clock in February 2026 without any new evidence of danger.
- Visitation Supervisor Hendrix made false reports to the court on two documented occasions.
- The Magistrate refused to compel production of withheld transcripts and recordings.
- My emergency motions filed April 10 and April 18, 2026 were returned with no action taken.
- The children's therapist reported physical and sexual abuse of my youngest child. No action was taken.
- The Belgium relocation order is based on an unverified job offer and is impossible, unsafe, and endangers my children.
- I am enrolled in the U.S. State Department CPIAP program and passports have not yet been issued as of this filing.

Executed on: _____

Signature: _____

Printed Name: Melissa M. Opsahl

Address: _____

Phone: _____

Email: _____

PROPOSED ORDER

The Court, having reviewed Petitioner's Emergency Motion for Injunctive Relief and Request for District Court Review under C.R.M. 7, hereby ORDERS:

1. Passport issuance for the minor children is STAYED pending further hearing.
2. The Belgium reunification and relocation order is STAYED pending further hearing.
3. Parenting time is restored to normal or minimally supervised in-person contact.
4. Reunification therapy shall occur locally at Relate Family Therapy.
5. Supervisor and Respondent shall produce all transcripts, recordings, and notes within 72 hours.
6. The February 2026 and March 2026 Magistrate orders are VACATED pending further hearing.
7. This matter is set for immediate review before a District Court Judge.

SO ORDERED this _____ day of _____, 2026.

_____

District Court Judge